



EFD

Complainant,

-versus-

AOD,

Respondent.

X-----X

NPC 22-042

For: Violation of the
Data Privacy Act of
2012

DECISION

NAGA, P.C.;

Before this Commission is a Complaint¹ filed by EFD (Complainant) against AOD (Respondent) for an alleged violation of Sections 25 (Unauthorized Processing), 31 (Malicious Disclosure), and 32 (Unauthorized Disclosure) of the Data Privacy Act of 2012 or Republic Act No. 10173 (DPA).

Facts

On 21 February 2022, Complainant filed her Complaints-Assisted Form (CAF) and attached a copy of a complaint filed before the Department of Education (DepEd Complaint) by the Respondent.² According to Complainant, Respondent attached “sensitive informations *sic* [and] portrayal” without her consent.³ The said sensitive information were contained in the birth certificate of one DF,⁴ and the portrayal was included in the screenshots of photos and exchange of text messages between Complainant and Respondent’s husband.⁵

¹ Complaints-Assisted Form dated 21 February 2022 of EFD.

² *Id.*, referred to as Annex “A-1” and “A-2.”

³ *Id.*

⁴ *Id.*, referred to as Annex “B.”

⁵ Complaints-Assisted Form dated 21 February 2022 of EFD, referred to as Annexes “C” to “C-4.”

In the DepEd Complaint, Respondent accused Complainant of immorality for having an illicit affair with the former's husband.⁶ The DepEd Complaint also stated:

3. EFD is presently employed as Teacher 3 at X X X . She was married and separated, but still with communication with his previous husband who left her with their first-born daughter. RDL is constantly supporting her with the finances for their daughter until present.

4. That, on Year 2016, my husband worked at XXX as a Security Guard where he met the respondent.

5. They have an on and off relationship until the respondent got pregnant and delivered her second-born male child last August 24, 2019.

6. October of 2019, I discovered her relationship with my husband when I found a copy of birth certificate of a male baby named DF. That's the time I confronted mu husband and he confessed to me about their relationship. Accordingly, he was the father of the respondent's newborn child but he denied having a continuous relationship with the respondent.⁷

7. From then on, I tried browsing my husband's cellphone and I've seen their exchange of messages and pictures together. I kept a copy of it to serve as my evidence. Unfortunately, my husband had his cellphone locked and have it password protected. I have attached herewith some copies of their SMS messages and photos for reference.⁸

Thus, Complainant prayed for the payment of damages, imposition of fine, and the retrieval of the sensitive information, as well as the immediate deletion of the photos gathered by Respondent.⁹

Subsequently, the National Privacy Commission's (NPC) Complaints and Investigation Division (CID) issued an Order dated 09 March 2022 requiring the Respondent to file her Verified Comment within fifteen (15) calendar days from receipt of the said Order.¹⁰ In the same Order, the CID required the parties to appear virtually for

⁶ *Id.*, referred to as Annex "A-1" at ¶ 2.

⁷ *Id.*, at ¶¶ 3-6.

⁸ *Id.*, referred to as Annex "A-2" at ¶ 7.

⁹ Complaints-Assisted Form dated 21 February 2022 of EFD at p. 5.

¹⁰ NPC 22-042 (*unreported*), Order of Complaints and Investigation Division dated 09 March 2022, at p. 1.

preliminary conferences on 07 June 2022 and 05 July 2022 pursuant to Rule V of NPC Circular 2021-01.¹¹

Accordingly, on 25 March 2022, Respondent submitted her Verified Comment dated 23 March 2022, arguing that the complaint filed by the Complainant before the Commission does not involve a privacy violation.¹² In her Verified Comment, Respondent cited Section 13(f) of the DPA which states:

SEC. 13. Sensitive Personal Information and Privileged Information. – The processing of sensitive personal information and privileged information shall be prohibited, except in the following cases:

...

(f) The processing concerns such personal information as is necessary for the protection of lawful rights and interests of natural or legal persons in court proceedings, or the establishment, exercise or defense of legal claims, or when provided to government or public authority.¹³

Moreover, Respondent cited Section 19 of the DPA which states:

SEC. 19. Non-Applicability. – The immediately preceding sections are not applicable if the processed personal information are used only for the needs of scientific and statistical research and, on the basis of such, no activities are carried out and no decisions are taken regarding the data subject: Provided, That the personal information shall be held under strict confidentiality and shall be used only for the declared purpose. Likewise, the immediately preceding sections are not applicable to processing of personal information gathered for the purpose of investigations in relation to any criminal, administrative or tax liabilities of a data subject.¹⁴

In relation to the above stated provisions of the DPA, Respondent argued that:

¹¹ *Id.*, at pp. 1-2.

¹² Verified Comment dated 23 March 2022 of AOD, at p. 1.

¹³ *Id.*, at p. 2.

¹⁴ *Id.*

8. There is no doubt that the documents being complained of by complainant as violative of Data Privacy Law were submitted and attached as evidence by respondent before the DepEd, a government institution, necessary to establish her legal claim as complainant in the aforesaid complaint for *complaint for disgraceful and immoral conduct* filed against respondent and for the protection of her lawful rights and interest.

10. Without presenting the foregoing proof, how can the respondent substantiate her claim before the DepEd that complainant is guilty of disgraceful and immoral conduct?¹⁵

Lastly, Respondent prayed that the complaint be dismissed outright considering that it does not involve any privacy violation or personal data breach, citing Section 12(b), Rule II of NPC Circular 2016-04 or the 2016 Rules of Procedure of the NPC.¹⁶

On 30 March 2022, the CID issued an Order noting the Verified Comment submitted by Respondent.¹⁷

On 06 June 2022, Complainant requested for the rescheduling of the preliminary conference dated 07 June 2022 due to a conflict with her legal counsel's schedule.¹⁸ Accordingly, the CID issued an Order granting Complainant's request and rescheduled the first preliminary conference on 05 July 2022.¹⁹

On 04 July 2022, NDT Law Office filed a Formal Entry of Appearance for the Respondent.²⁰ Subsequently, the CID issued an Order noting the Formal Entry of Appearance filed by Respondent's legal counsel.²¹

¹⁵ *Id.*, at pp. 2-3

¹⁶ Verified Comment dated 23 March 2022 of AOD, at pp. 4-5.

¹⁷ NPC 22-042 (*unreported*), Order (Noting the Submission of Verified Comment of the Respondent) of Complaints and Investigation Division dated 30 March 2022.

¹⁸ Electronic mail dated 06 June 2022 from EFD.

¹⁹ NPC 22-042 (*unreported*), Order (Granting the Complainant's Email Manifestation and Resetting the 1st Preliminary Conference from 07 June 2022 to 05 July 2022) of Complaints and Investigation Division dated 07 June 2022.

²⁰ Formal Entry of Appearance dated 04 July 2022 of NDT Law Office.

²¹ NPC 22-042 (*unreported*), Order (Noting the Respondent's Formal Entry of Appearance) of Complaints and Investigation Division dated 05 July 2022.

On 05 July 2022, both parties appeared before the CID for the first preliminary conference.²² During the first preliminary conference, the legal counsels of both parties manifested the following issues: (1) whether the Respondent committed a violation of the DPA; and, (2) whether there has been an intrusion into the right to privacy of the Complainant.²³

As to the stipulation or admission of facts or documents, Complainant's legal counsel stipulated the identities of the parties, which Respondent's legal counsel admitted.²⁴ On the other hand, Respondent's legal counsel manifested the following, which Complainant's legal counsel has admitted:

1. The existence of a pending administrative complaint for disgraceful and immoral conduct filed by Respondent before DepEd.
2. That the Complainant personally knows Respondent's spouse.
3. That the Complainant is a teacher by profession.²⁵

Moreover, the parties manifested that they will not undergo discovery proceedings before the CID.²⁶ Likewise, while Complainant is willing to undergo mediation proceedings, Respondent refused to undergo amicable settlement.²⁷ Thus, the CID ordered the parties to submit their respective memoranda pursuant to Section 2, Rule VII of the 2021 NPC Rules of Procedure within fifteen (15) calendar days from receipt of such Order.²⁸

Lastly, in the first preliminary conference, the CID required Complainant's legal counsel, TS (TS), to file his entry of appearance

²² NPC 22-042 (*unreported*), Order (After the 1st Preliminary Conference held on 05 July 3033, To Require the counsel for complainant to file his entry of appearance, and To Require both Parties to Submit their Simultaneous Memoranda) of Complaints and Investigation Division dated 05 July 2022.

²³ *Id.*, at p. 1.

²⁴ *Id.*

²⁵ *Id.*

²⁶ NPC 22-042 (*unreported*), Order (After the 1st Preliminary Conference held on 05 July 3033, To Require the counsel for complainant to file his entry of appearance, and To Require both Parties to Submit their Simultaneous Memoranda) of Complaints and Investigation Division dated 05 July 2022, at p. 2.

²⁷ *Id.*

²⁸ *Id.*

before the Commission.²⁹ Thereafter, TS filed his Entry of Appearance dated 13 July 2022 as legal counsel for the Complainant.³⁰ On 13 July 2022, the CID issued an Order noting TS' Entry of Appearance.³¹

On 20 July 2022, Complainant submitted her Memoranda dated 18 July 2022 alleging that the pieces of evidence presented by Respondent in the DepEd Complaint, particularly the former's lewd photos, was "a blatant violation [her] privacy and should be disregarded by this Honorable Office."³² In support of this claim, Complainant cited the case of *Z v. Court of Appeals* in relation to Section 3(1) and (2) of the 1987 Philippine Constitution which state:

Section 3. (1) The privacy of communication and correspondence shall be inviolable except upon lawful order of the court, or when public safety, or when public safety or order requires otherwise, as prescribed by law.

(2) Any evidence obtained in violation of this or the preceding section shall be inadmissible for any purpose in any proceeding.³³

In citing the abovementioned provision, Complainant stated in her Memorandum:

5.4. To further satisfy her inquisitive mind, complainant went further in intruding her husband's cellphone and gathered photos and pictures as evidence despite it being locked;

6. Complainant cries foul for the outright defiance of her right to privacy and correspondence for the attachment of sensitive documents and evidence practically disclosing her intimate and protected information out of the open and before this office[.]³⁴

Moreover, in applying the case of *Z v. Court of Appeals*, Complainant stated:

²⁹ *Id.*, at p. 1.

³⁰ Entry of Appearance dated 13 July 2022 of TS.

³¹ NPC 22-042 (*unreported*), Order (Noting Complainant's Counsel Entry of Appearance) of Complaints and Investigation Division dated 13 July 2022.

³² Memorandum dated 18 July 2022 of EFD, at p. 3.

³³ *Id.*

³⁴ *Id.*, at p. 3, ¶¶ 5.4 and 6.

Here, Respondent in her complaint before the DepEd, paragraph no. 7, under oath, admitted that she browsed the cellphone of her husband which was locked and password protected. In this case, complainant disregarded her husband's right to privacy and weaponized his disproportionated reaction against the *sic* me. Respondent took the matter in her hands when she decided to intrude her husband's private correspondence just because of her unfounded suspicions.

Worst, under paragraph no. 6, complainant even dragged an innocent toddler in her shameless and desperate attempt to prove the alleged illicit affairs. Respondent failed to explain the origins by which she obtained the Certificate of Live Birth of DF, what is even more cringe worthy is that, the name of her husband nor is her (complainant) maybe gleaned from the document that would warrant her authority to obtain it. The only conclusion that maybe drawn from these set of circumstances is that, complainant obtained a copy of it illegally. On top of that, DF has nothing to do with the instant case that would justify the conclusion of the said document.³⁵

Complainant further argued that the pieces of evidence obtained by Respondent from her husband are "excluded by law for the violation of the right to privacy while the Certificate of Birth of DF is totally irrelevant to the filing of the case inasmuch as it does not reflect any data that will relate the Respondent or her husband for any purposes."³⁶

In view of the foregoing arguments presented in her Memorandum, Complainant prayed that an order be issued for the permanent ban of the data gathered by Respondent thereby rendering them inadmissible, a recommendation for the institution of criminal action for violation of the DPA, and the indemnification of moral and exemplary damages against the Respondent.³⁷

On 23 August 2022, the Respondent submitted her Memorandum reiterating her arguments in her Verified Comment dated 23 March 2022.³⁸ Respondent likewise attached in her Memorandum a copy of

³⁵ *Id.*, at p. 4.

³⁶ Memorandum dated 18 July 2022 of EFD, at p. 5.

³⁷ *Id.*, at p. 7.

³⁸ Respondent's Memorandum dated 12 August 2022 of AOD.

a Certificate of Marriage between her and her husband,³⁹ a copy of Certificate of Live Birth of DF,⁴⁰ screenshots of exchange of messages between Complainant and the Respondent's husband⁴¹ as well as copies of their photos together,⁴² *Sinumpaang Salaysay* executed by Respondent's husband⁴³ and one MCC,⁴⁴ and the DepEd Complaint filed by Respondent against Complainant.⁴⁵

Based on the foregoing circumstances, the instant case is now submitted before the Commission *en banc* for decision.

Issue

Whether Respondent committed a violation of the DPA.

Discussion

The Commission finds that Respondent did not commit a violation of the DPA, thus, dismissing the case for lack of merit. Respondent has lawful basis under Section 13(f) in relation to Section 12(f) of the DPA to process the personal data involved in this case.

In her Memorandum, Complainant stated that in filing the DepEd Complaint by Respondent, the latter attached a copy of the birth certificate of DF, the alleged son of Respondent and Complainant's husband, as well as Facebook photos and exchange of messages of the latter, to prove their illicit affair.⁴⁶ She further argued that the documents attached in the DepEd Complaint are "excluded by law for the violation of the right to privacy while the Certificate of Birth of DF is totally irrelevant to the filing of the case inasmuch as it does not reflect any data that will relate the Respondent or her husband for any purposes."⁴⁷

³⁹ *Id.*, referred to as Exhibit "1."

⁴⁰ *Id.*, referred to as Exhibit "2."

⁴¹ *Id.*, referred to as Exhibits "3-A" to "3-D."

⁴² Respondent's Memorandum dated 12 August 2022 of AOD, referred to as Exhibits "4-A" to "4-N."

⁴³ *Id.*, referred to as Exhibit "5."

⁴⁴ *Id.*, referred to as Exhibit "6."

⁴⁵ *Id.*, referred to as Exhibit "7."

⁴⁶ Memorandum dated 18 July 2022 of EFD, at p. 4.

⁴⁷ *Id.*, at p. 5.

I. The instant complaint involves a data privacy violation.

In the case of *GSS v. Global Dominion Financing, Inc.*, a privacy violation is defined as follows:

A privacy violation pertains to the processing of personal information in violation of a person's reasonable expectation of confidentiality or privacy or in violation of any law, rules, or regulation relating to the protection of personal data, such as the DPA. It includes but is not limited to a violation of the general principles of privacy, a violation of the rights of the data subjects, unauthorized processing, improper disposal of personal data, processing for an unauthorized purpose, concealment of security breaches, and unauthorized or malicious disclosure.⁴⁸

In her Verified Comment dated 23 March 2022, Respondent argued that the complaint filed by the Complainant before the Commission does not involve a privacy violation, citing Sections 13(f) and 19 of the DPA.⁴⁹

Processing, as defined in Section 3(j) of the DPA, refers to any operation or any set of operations performed upon personal information including, but not limited to, the collection, recording, organization, storage, updating or modification, retrieval, consultation, use, consolidation, blocking, erasure or destruction of data.⁵⁰

Moreover, upon review of the pieces of evidence submitted before the Commission, the birth certificate of DF contains personal and sensitive personal information. Also, the screenshots of photos and text messages involve personal information identifiable to the Complainant.

⁴⁸ *GSS v. Global Dominion Financing Inc.*, NPC 21-064, Decision dated 16 June 2022, at p. 7.

⁴⁹ Verified Comment dated 23 March 2022 of AOD, at p. 1.

⁵⁰ An Act Protecting Individual Personal Information in Information and Communications Systems in the Government and the Private Sector, Creating for This Purpose a National Privacy Commission, and for Other Purposes [Data Privacy Act of 2012], Republic Act No. 10173, chapter I, § 3(j) (2012).

Here, personal data was processed when the subject documents relating to Complainant's personal and sensitive personal information were used as an attachment to the DepEd Complaint. Thus, the Commission finds that the instant case involves a data privacy violation.

Nevertheless, while it is true that there is a privacy violation, the case should still be dismissed for lack of merit.

II. The photos and Certificate of Live Birth attached by Respondent to the DepEd Complaint contain personal and sensitive personal information.

Section 3(g) of the DPA defines personal information as:

[A]ny information whether recorded in a material form or not, from which the identity of an individual is **apparent or can be reasonably and directly ascertained** by the entity holding the information, or when put together with other information would directly and certainly identify an individual.⁵¹

In this case, the photos of Complainant, as well as the other personal data contained in the Certificate of Live Birth attached by Respondent to the DepEd Complaint are considered as personal information since Complainant's identity is apparent or can be reasonably and directly ascertained.⁵²

Moreover, Section 3(l) of the DPA defines sensitive personal information as personal information:

- (1) About an individual's **race**, ethnic origin, marital status, **age**, color, and **religious**, philosophical or political affiliations;
- (2) About an individual's health, education, genetic or sexual life of a person, or to any proceeding for any offense committed or alleged to have been committed by such person, the disposal

⁵¹ An Act Protecting Individual Personal Information in Information and Communications Systems in the Government and the Private Sector, Creating for This Purpose a National Privacy Commission, and for Other Purposes [Data Privacy Act of 2012], Republic Act No. 10173, chapter I, § 3(g) (2012).

⁵² *MAF v. Shopee Philippines, Inc.*, NPC 21-167, Decision dated 22 September 2022, at p. 4.

of such proceedings, or the sentence of any court in such proceedings;

(3) Issued by government agencies peculiar to an individual which includes, but not limited to, social security numbers, previous or current health records, licenses or its denials, suspension or revocation, and tax returns; and

(4) Specifically established by an executive order or an act of Congress to be kept classified.⁵³ (Emphasis supplied)

To emphasize, the Certificate of Live Birth of DF, Complainant's son, pertains not only to personal information but also to sensitive personal information as it contains his birthdate which can specifically determine his age, and Complainant's racial origin, religion, and age as well.⁵⁴

III. There is lawful basis for processing Complainant's personal and sensitive personal information.

In her CAF, Complainant stated that Respondent attached documents in the DepEd Complaint which contained sensitive personal information and Complainant's photos without her consent.⁵⁵

However, it must be emphasized that consent is not the only lawful basis for processing personal and sensitive personal information.⁵⁶

Section 12(f) of the DPA, provides the criteria for lawful processing of personal information and among them is processing which is "necessary for the purposes of the legitimate interest pursued by the personal information controller:"

SEC. 12. Criteria for Lawful Processing of Personal Information. – The processing of personal information shall be

⁵³ An Act Protecting Individual Personal Information in Information and Communications Systems in the Government and the Private Sector, Creating for This Purpose a National Privacy Commission, and for Other Purposes [Data Privacy Act of 2012], Republic Act No. 10173, chapter I, § 3(l) (2012).

⁵⁴ Complaints-Assisted Form dated 21 February 2022 of EFD, referred to as Annex "B."

⁵⁵ *Id.*, at p. 3.

⁵⁶ NPC 21-095 (*unreported*), Decision dated 28 July 2022.

permitted only if not otherwise prohibited by law, and when at least one of the following conditions exists:

xxx

(f) The processing is necessary for the purposes of the **legitimate interests** pursued by the personal information controller or by a third party or parties to whom the data is disclosed, except where such interests are overridden by fundamental rights and freedoms of the data subject which require protection under the Philippine Constitution.⁵⁷ (Emphasis supplied)

In relation to this, Section 13(f) of the DPA states:

SEC. 13. Sensitive Personal Information and Privileged Information. – The processing of sensitive personal information and privileged information shall be prohibited, except in the following cases:

x x x

(f) The processing concerns such personal information as is **necessary for the** protection of lawful rights and interests of natural or legal persons in court proceedings, or the **establishment, exercise or defense of legal claims**, or when provided to government or public authority.⁵⁸ (Emphasis supplied)

Generally, the processing of sensitive personal information is prohibited.⁵⁹ However, Section 13(f) of the DPA is an exception as the processing of sensitive personal information is allowed when it is necessary for the establishment of legal claims.⁶⁰ In interpreting Section 13(f) of the DPA on the protection of lawful rights or establishment of legal claims, the said provision must be read with Section 12(f) thereof on legitimate interest. The Commission has previously pronounced that “the protection of lawful rights and interests under Section 13(f) x x x is considered as legitimate interest pursuant to Section 12(f) of the DPA.”⁶¹

⁵⁷ Data Privacy Act of 2012, chapter III, § 12(f).

⁵⁸ *Id.*, § 13(f).

⁵⁹ *Id.*

⁶⁰ *Id.*

⁶¹ *BGM v. IPP*, NPC 19-653, Decision dated 17 December 2020, at p. 7.

By application, Respondent's act of attaching the subject photos and Certificate of Live Birth to the DepEd Complaint is considered a lawful basis of processing under Section 13(f) in relation to Section 12(f) of the DPA.

Based on the records, Respondent filed the DepEd Complaint, charging the Complainant with immorality.⁶² In order to substantiate her charges against Complainant, Respondent attached a copy of the Certificate of Live Birth of DF, the alleged child of her husband and Complainant, as well as copies of their photos and exchange of messages.⁶³

In *EA and TA vs. EJ et. al*, the Commission pronounced:

After all, the very idea of "establishment ... of legal claims" presupposes that there is still no pending case since a case will only be filed once the required legal claims have already been established.

In addition, the use of the qualifier "necessary" in the law should be understood to apply not just to the "protection of lawful rights and interests of...persons in court proceedings" but also to the "establishment... of legal claims."⁶⁴

Applying the above stated ruling, the attachment to the DepEd Complaint of the subject documents by Respondent was necessary to establish her allegations of immorality against Complainant by using the same as pieces of evidence to the said DepEd Complaint. In this sense, the filing of the DepEd Complaint and subsequently attaching the subject documents are considered as processing necessary to establish a legal claim and compatible with the general data privacy principles of legitimate purpose and proportionality.

On this note, Rule IV, Section 18(b) of the Implementing Rules and Regulations of the DPA states that to achieve legitimate purpose of processing personal data, it shall be "compatible with a declared and specified purpose which must not be contrary to law, morals, or

⁶² Complaints-Assisted Form dated 21 February 2022 of EFD, referred to as Annex "A-1."

⁶³ *Id.*, referred to as Annex "B."

⁶⁴ *EA and TA vs. EJ, EE, and HC*, NPC 17-018, Decision dated 15 July 2019, at p. 7.

public policy.”⁶⁵ This means that the processing done for the establishment of a legal claim should not in any manner be outside the limitations provided by law.⁶⁶

Here, the attachment of the documents containing personal data was in view of the DepEd Complaint filed by the Respondent against Complainant and is therefore compatible with the declared and specific purpose, in accordance with the DPA and its IRR.

Complainant also alleged that:

Respondent failed to explain the origins by which she obtained the Certificate of Live Birth of DF what is even more cringe worthy is that, the name of her husband nor is her (complainant) maybe gleaned from the document that would warrant her authority to obtain it.⁶⁷

Accordingly, Complainant averred that the pieces of evidence gathered by Respondent are inadmissible.⁶⁸

Administrative agencies, such as this Honorable Commission, exercising quasi-judicial functions, are not bound by the technical rules applicable to judicial proceedings.⁶⁹ In cases decided by the Supreme Court, the summary nature of administrative proceedings is necessary “to achieve an expeditious and inexpensive determination of cases without regard to technical rules[.]”⁷⁰ Decisions made by administrative or quasi-judicial bodies “may be reached on the basis of position papers or other documentary evidence only” and that they are not bound by technical rules of procedure and evidence.⁷¹

While Complainant alleged that Respondent illegally obtained the copies of the Certificate of Live Birth, the subject photos, and the exchange of messages between Complainant and Respondent’s

⁶⁵ National Privacy Commission, Implementing Rules and Regulations of the Data Privacy Act of 2012, rule IV, § 18(b) (2016).

⁶⁶ AQM v. PIT, NPC 22-112, Decision dated 18 April 2024, at p. 13.

⁶⁷ Memorandum dated 18 July 2022 of EFD, at p. 4.

⁶⁸ *Id.*, at pp. 4-5.

⁶⁹ *Norlina G. Sibayan v. Elizabeth Alda*, G.R. No. 233395, 17 January 2018.

⁷⁰ *Id.*

⁷¹ *Id.*

husband,⁷² these allegations are mere suspicions and speculations that cannot be given credence. Basic is the rule that “mere allegation is not evidence and is not equivalent to proof. When the complainant relies on mere conjectures and suppositions, and fails to substantiate his allegations, the complaint must be dismissed for lack of merit.”⁷³ Hence, Complainant’s allegations that Respondent obtained the Certificate of Live Birth illegally was not proved by substantial evidence, making such claims unmeritorious.

Considering the foregoing, the Commission cannot find Respondent liable under Sections 25, 31, and 32 of the DPA because she has lawful basis in processing Complainant’s personal data under Section 13(f) in relation to Section 12(f).

WHEREFORE, premises considered, this Commission resolves that the instant Complaint filed by **EFD** against **AOD** is hereby **DISMISSED** for lack of merit.

This is without prejudice to the filing of appropriate civil, criminal or administrative cases against the Respondent before any other forum or tribunal, if any.

SO ORDERED.

City of Pasay, Philippines.
12 August 2024.

SGD
JOHN HENRY D. NAGA
Privacy Commissioner

WE CONCUR:

⁷² Memorandum dated 18 July 2022 of EFD, at p. 4.

⁷³ Florencio Morales, Jr. V. Ombudsman Conchita Carpio-Morales, G.R. No. 208086, 27 July 2016.

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EFD
Complainant

AOD
Respondent

COMPLAINTS AND INVESTIGATION DIVISION
ENFORCEMENT DIVISION
GENERAL RECORDS UNIT
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